
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: June 9, 2021
SUBJECT: Consideration to Purchase between the City of Cheyenne, and CenturyLink, Littleton, Colorado, to relocate CenturyLink owned fiber optic utilities in preparation for an upcoming construction project

This is a sole source purchase through CenturyLink, therefore no bids were requested.

This is a utility relocation in order to accommodate a future construction project. The utility alignment will need to be relocated outside the limits of deep footings and a pedestrian underpass.

Century Link is the utility owner / operator of the facility and has full control of operation and maintenance. Therefore, they require that they relocate their own facilities.

The City of Cheyenne Engineering Department is seeking funding authorization in an amount not to exceed **\$72,000.00**.

Funding: (030-17-1754-45-43717 / Greenway Projects)
\$72,000.00



REQUEST FOR SOLE/SINGLE SOURCE PURCHASE

DIRECTIONS:

Complete this form for all purchase requests with a sole/single source vendor. Send to the Purchasing Office before purchasing the item(s) along with the letter from the vendor indicating they are the sole/single supplier. **If over \$34,999.99, attach a copy of the legal ad and place on council.**

Name: Thomas Cobb

Date: 6/9/2021

Division/Department: Engineering

ITEM DESCRIPTION: This is a utility relocation in order to accommodate a future construction project. The utility alignment will need to be relocated outside the limits of deep footings and a pedestrian underpass.

AMOUNT OF PURCHASE: \$72,000

STATE REASON FOR SOLE OR SINGLE SOURCE PURCHASE (CIRCLE ONE):

Century Link is the utility owner/ operator of the facility and has full control of operation and maintenance. Therefore, they require that they relocate their own facilities.

Signature of Requesting Individual: *Thomas Cobb*

Digitally signed by tcobb@cheyennecity.org
DN: cn=tcobb@cheyennecity.org
Date: 2021.06.09 11:05:12 -0600

DIVISION/DEPARTMENT HEAD APPROVAL:

Name: *Thomas Cobb*

Digitally signed by tcobb@cheyennecity.org
DN: cn=tcobb@cheyennecity.org
Date: 2021.06.09 11:05:04 -0600

Date: 6/9/2021

COMMENTS: Approved

For Purchasing Office use only:

Sole/Single Source Letter Attached: Yes / No NA

Legal Ad Attached: Yes No / NA

Finance Dates: June 21, 2021

City Council Dates: June 14 & 28, 2021

Received On: 6/9/2021

TJB

Digitally signed by TJB
DN: cn=TJB, ou=Purchasing
email=TJB@cheyennecity.org, c=US
Date: 2021.06.09 11:12:33 -0600

TJB

REQUEST TO PURCHASE OVER \$35,000.00

Consideration to purchase between the City of Cheyenne, and CenturyLink, Littleton, Colorado, to relocate CenturyLink owned fiber optic utilities in preparation for an upcoming construction project, in an amount not to exceed \$72,000.00. This is a single source purchase, therefore no bids were requested.

This will be reviewed by the City Council Finance Committee on June 21, 2021 and voted on at the June 28, 2021 City Council meeting.

TJ Barttelbort, Purchasing Manager
City of Cheyenne, Wyoming
(307) 773-1045

Handwritten signature of TJ Barttelbort in black ink.

Published in: Wyoming Tribune-Eagle
Dates: June 11 & 18, 2021

Special Construction Proposal

Contract No No
Job Authorization No: N838765
CTL Affiliate: Qwest Corporation

Date: 04/16/21

Billing Address:

Work Location:

Customer: CITY OF CHEYENNECOLLEGE DRAttention: THOMAS COBBCounty LARAMIE2101 O'NEIL AVECHEYENNE, WYCheyenne, WY 82001

This Proposal is governed by the terms and conditions set forth herein as well as any applicable state or federal tariffs filed with the appropriate state or federal regulators. Description and/or specifications of work to be performed by an operating affiliate of CenturyLink Inc. ("CenturyLink") under this Proposal ("Work") is as follows:

LUMEN WILL TRENCH/BORE 2100' OF 4" CONDUIT WITH TRI-PACK PLACE INSIDE CONDUIT, AND 2 NEW HANDHOLES. LUMEN WILL REMOVE THE EXISTING FIBER ONCE THE FIBER COUNT IS CUT OVER TO NEW FIBER. ALSO PLACE 2500' OF 288 FIBER AND SPLICING. LUMEN WILL TRENCH 250' OF 300 PAIR COPPER CABLE, SPLICING AND 2 BURIED SPLICE CASES.

Advance Payment (required before work begins): \$72,000.00Total Charges: Seventy-Two Thousand Dollars and 00/100

For the Work performed hereunder, Customer will be responsible for the actual charges incurred. The estimated charges above shall be paid prior to commencement of the Work ("Advance Payment"). Amounts due from Customer in excess of estimated amounts shall be paid by Customer within thirty days of invoice, or such longer time, if any, as set forth on such invoice. Refunds due Customer, if any, shall be refunded as required by applicable tariff. All past due, undisputed amounts due from Customer to Company will be assessed a late fee at 14% APR. Where applicable, Customer shall also be responsible for foreign, federal, state and local taxes assessed in connection with the Work, including without limitation, all use, sales, value added, surcharges, excise, franchises, commercial, gross receipts, license, privilege or other similar charges, whether charged to or against Company or Customer, but excluding any taxes based on Company's net income.

For **Governmental Customers only**, Company will submit an invoice of charges upon completion of the Work, payable within forty-five (45) days of receipt. Past due undisputed amounts will be assessed a late fee in accordance with the applicable state and/or federal laws

*The Work proposed here is separate from any work that may be performed pursuant to any other order or agreement, including but not limited to a Pre-Service Request for cell site provisioning. This Proposal shall be deemed withdrawn by Company if not accepted by the Customer within 30 days. **Upon execution by both parties, this Proposal and the terms and conditions of any applicable tariffs or Rates and Services Schedules on file with the applicable regulatory authorities shall constitute a binding agreement upon the parties.**

CenturyLink

Authorized Signature: _____

Name Printed/Typed: _____

Title: _____

Date: _____

Customer

Authorized Signature: _____

Name Printed/Typed: _____

Title: _____

Date: _____

APPROVED

By Michael R. O'Donnell at 2:31 pm, Jun 07, 2021

04/16/21

CITY OF CHEYENNE
Attn: THOMAS COBB
2101 O'NEIL AVE
Cheyenne, WY 82001

Re: CHEYENNE, WY

BAN Number N838765

THOMAS COBB,

Please review the attached Special Construction Proposal. If acceptable, return a signed copy and a form of payment for the total charges in the amount of \$72,000.00. Please note, your job will not be scheduled until we are in receipt of the above.

Send all documents and payments to:

CenturyLink Asset Accounting - BART
700 W Mineral Ave
Room NM P29.34
Littleton, CO 80120

Documents to include:

- Signed Proposal
- Payment

After we have received the above from you, we will return one fully executed copy for your records. The fully executed Special Construction Proposal will constitute the agreement between you and Centurylink for the Work. NO ADDITIONAL TERMS AND CONDITIONS WILL BE ACCEPTED.

We only accept check, money order and ACH as a form of prepayment. Check or money order should be made payable to CenturyLink. If you are providing a Purchase Order as a form of payment, please sign, date and return the Purchase Order for the amount of \$72,000.00. If you are interested in an electronic payment option, ACH is available and instructions will be provided to you upon request.

CenturyLink is unable to accept credit card payments for Special Construction projects.

Any questions regarding the scheduling of the work to be performed or decisions to cancel the work, please contact CenturyLink representative, Darrin Klawon at +13077716213.

Asset Accounting Operations
Email: sconstr@Lumen.com

enclosures